



February 12, 2026

ENGROSSED SENATE BILL No. 10

DIGEST OF SB 10 (Updated February 11, 2026 1:46 pm - DI 140)

Citations Affected: IC 5-10; IC 6-7.

Synopsis: State employee retirement benefits. Requires the state to make contributions after December 31, 2026, that match, dollar for dollar, each state employee's deferred compensation contributions, not to exceed \$28 per paycheck. Specifies limitations on state contributions, including the availability of biennial appropriations. Allows in certain circumstances the budget agency to suspend contributions, resume contributions, and make contributions that were missed due to suspension. Specifies a process by which portions of the funding sources for the retirement medical benefits account must be transferred to the state comptroller for the purpose of making matching
(Continued next page)

Effective: Upon passage.

**Rogers, Buchanan, Niezgodski,
Hunley, Doriot, Randolph Lonnie M**
(HOUSE SPONSORS — LOPEZ, JORDAN, VANNATTER, MOSELEY)

December 8, 2025, read first time and referred to Committee on Pensions and Labor.
December 10, 2025, amended, reported favorably — Do Pass; reassigned to Committee on Appropriations.

January 22, 2026, amended, reported favorably — Do Pass.

January 27, 2026, read second time, amended, ordered engrossed.

January 28, 2026, engrossed. Read third time, passed. Yeas 47, nays 0.

HOUSE ACTION

February 2, 2026, read first time and referred to Committee on Employment, Labor and Pensions.

February 12, 2026, reported — Do Pass. Referred to Committee on Ways and Means pursuant to Rule 126.3.

ES 10—LS 6184/DI 144



contributions. Provides as a default rule that after December 31, 2026, each participant's membership in the retirement medical benefits account is terminated, participant subaccounts are forfeited, and subaccount amounts must be transferred to the state general fund. Specifies exceptions. Requires the state comptroller to transfer certain amounts from the state general fund to each participant's defined contribution plan. Specifies a time frame within which a participant in the retirement medical benefits account may elect to remain a participant. Establishes the 2027 retiree health benefit trust. Provides that the retiree health benefit trust fund will be terminated when certain conditions are met. (The introduced version of this bill was prepared by the interim study committee on pension management oversight.)



February 12, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED SENATE BILL No. 10

A BILL FOR AN ACT to amend the Indiana Code concerning pensions.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 5-10-1.1-1.5, AS AMENDED BY P.L.9-2024,
2 SECTION 122, IS AMENDED TO READ AS FOLLOWS
3 [EFFECTIVE UPON PASSAGE]: Sec. 1.5. (a) The state, through the
4 budget agency, ~~may~~ **shall** adopt a defined contribution plan, under
5 Section 401(a) of the Internal Revenue Code, for the purpose of
6 matching all or a specified portion of state employees' contributions to
7 the state employees' deferred compensation plan and for any additional
8 purposes established by statute.
9 (b) The deferred compensation committee shall be the trustee of a
10 plan established under subsection (a) as described in section 4 of this
11 chapter. A plan established under subsection (a) shall be administered
12 by the state comptroller as described in section 5 of this chapter.
13 (c) The deferred compensation committee may approve funding
14 offerings for a plan established under subsection (a), which may be the
15 same as offerings for the state employees' deferred compensation plan.
16 All funds in each plan shall be separately accounted for but may be
17 commingled for investment purposes.

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(d) **This subsection applies before January 1, 2027.** Contributions to a plan established under subsection (a) are limited to the amount of biennial appropriations the budget agency determines are available for any such purposes.

(e) **This subsection applies after December 31, 2026. Subject to subsections (f) and (g), after December 31, 2026, the state shall make contributions to the defined contribution plan established for each state employee under subsection (a) that match, dollar for dollar, each employee's contributions to the employee's deferred compensation plan.**

(f) **The following apply to state contributions under subsection (e):**

(1) **State contributions may not exceed twenty-eight dollars (\$28) for each payroll warrant or payroll authorization.**

(2) **State contributions are limited to the amount of biennial appropriations the budget agency determines are available for any such purposes.**

(g) **The budget agency may do the following in consultation with the state comptroller:**

(1) **Suspend, in extraordinary financial circumstances, the payment of state contributions under subsection (e).**

(2) **If sufficient funds are available, resume the payment of state contributions following the suspension of payments under subdivision (1).**

(3) **If sufficient funds are available, make contributions to the defined contribution plan established for each state employee under subsection (a) in an amount equal to the contributions that each state employee did not receive as a result of the suspension of payments under subdivision (1).**

(h) **The deferred compensation committee may use funds available under the plan to hire or contract with qualified attorneys, financial advisers, or other professional or administrative persons that the committee believes are necessary or useful in the administration of the plan.**

~~(e)~~ (i) **A plan established under subsection (a) must include appropriate provisions concerning the plan's day to day operation and any other provisions that are appropriate. Notwithstanding IC 22-2-6-2, the plan may also include provisions for the use of automated voice response units and telephonic communications, online activities, and other technology for participant elections, directions, and services if the technology has sufficient capacity to record and store the elections and directions.**



(f) The state is obligated at any particular time only for the current market value of the funding previously made to a plan established under subsection (a):

(g) (j) The state board of finance shall extend the plan established under subsection (a) to any political subdivision that also elects to use the state employees' deferred compensation plan for its employees as authorized in section 7(b)(2) or 7(b)(3) of this chapter.

SECTION 2. IC 5-10-1.1-7.6 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: **Sec. 7.6. For participants who are subject to IC 5-10-8.5-9.7(b), the state comptroller shall transfer from the state general fund a one (1) time contribution of funds to each participant's defined contribution plan account under IC 5-10-1.1-1.5(a) based on the contributions the member would have received according to IC 5-10-8.5-15 based on each member's age and years of service. The deferred compensation committee shall adopt any plan provisions necessary to implement this contribution.**

SECTION 3. IC 5-10-8-8.5, AS AMENDED BY P.L.201-2023, SECTION 78, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: **Sec. 8.5. (a) The retiree health benefit trust fund is following are established to provide funding for a retiree health benefit plan developed under IC 5-10-8.5, including to provide continued funding for a retiree health benefit plan for individuals described in IC 5-10-8.5-9.7(a) and the individuals who elect to continue in the retiree health benefit trust fund pursuant to IC 5-10-8.5-9.7(c):**

(1) Before January 1, 2027, the retiree health benefit trust fund.

(2) After December 31, 2026, the 2027 retiree health benefit trust fund.

The trust fund described in subdivision (1) will be terminated upon the completion of the action required under IC 5-10-8.5-9.7.

(b) The trust fund funds shall be administered by the INPRS. The expenses of administering the trust fund funds shall be paid from money in the trust fund funds. **Subject to section 8.6 of this chapter,** the trust fund consists funds consist of cigarette tax revenues deposited in the fund funds under IC 6-7-1-28.1(6) and other appropriations, revenues, or transfers to the trust fund funds under IC 4-12-1.

(c) The INPRS shall invest the money in the trust fund funds not currently needed to meet the obligations of the trust fund funds in the same manner and with the same limitations described in IC 5-10.5-4-1



and IC 5-10.5-5-1.

(d) The trust ~~fund~~ **is funds** are considered a trust fund for purposes of IC 4-9.1-1-7. Money may not be transferred, assigned, or otherwise removed from the trust ~~fund~~ **funds** by the state board of finance, the budget agency, or any other state agency, **except as provided under IC 5-10-8.5-9.7 and IC 6-7-1-28.1(6)(B).**

(e) The trust ~~fund~~ **funds** shall be established and administered in a manner that complies with Internal Revenue Code requirements concerning health reimbursement arrangement (HRA) trusts. Contributions by the state to the trust ~~fund~~ **funds** are irrevocable. All assets held in the trust ~~fund~~ **funds** must be held for the exclusive benefit of participants of the retiree health benefit plan developed under IC 5-10-8.5 and their beneficiaries. **Subject to IC 5-10-8.5-9.7,** all assets in the trust ~~fund~~ **funds:**

(1) are dedicated exclusively to providing benefits to participants of the plan and their beneficiaries according to the terms of the plan; and

(2) are exempt from levy, sale, garnishment, attachment, or other legal process.

(f) Money in the trust ~~fund~~ **funds** does not revert to the state general fund at the end of any state fiscal year.

(g) The money in the trust ~~fund~~ **funds** is appropriated to the INPRS for providing the retiree health benefit plan developed under IC 5-10-8.5.

(h) The budget agency may transfer appropriations from federal or dedicated funds to the ~~retiree health benefit trust fund~~ **trust funds.**

SECTION 4. IC 5-10-8-8.6 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: **Sec. 8.6. (a) This section does not apply to cigarette tax revenues deposited in the retiree health benefit trust fund or the 2027 retiree health benefit trust fund under IC 6-7-1-28.1(6)(B) after December 31, 2026.**

(b) The INPRS shall do the following not later than December 31, 2026:

(1) Determine the amount of forthcoming appropriations, revenues, or transfers to the retiree health benefit trust fund under IC 4-12-1 that are not currently needed to meet the obligations of the retiree health benefit plan developed under IC 5-10-8.5.

(2) Provide written notice of the amount determined under subdivision (1) to the budget agency.

(c) This subsection applies after December 31, 2026. Before



1 appropriations, revenues, or transfers under IC 4-12-1 are
 2 deposited in the retiree health benefit trust fund, the budget agency
 3 shall transfer the amounts determined by the INPRS under
 4 subsection (b)(1) to the state general fund. The budget agency shall
 5 deposit the remainder of the appropriations, revenues, or transfers
 6 in the retiree health benefit trust fund or the 2027 retiree health
 7 benefit trust fund.

8 SECTION 5. IC 5-10-8.5-1, AS AMENDED BY P.L.229-2011,
 9 SECTION 70, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 10 UPON PASSAGE]: Sec. 1. (a) Except as provided in this section, this
 11 chapter applies to an individual who is one (1) of subsection (b), each
 12 of the following is a participant in the retirement medical benefits
 13 account:

- 14 (1) An employee of the executive, legislative, or judicial branch
 15 of state government.
- 16 (2) A state elected or appointed officer.
- 17 (3) A member of the general assembly.
- 18 (4) An elected officer paid by the state.
- 19 (5) An officer paid by the state under IC 33-23-5-10,
 20 IC 33-38-5-7, or IC 33-39-6-2.

21 (b) ~~An individual described in subsection (a) other than~~ The
 22 following is a participant **individuals are not participants** in the
 23 retirement medical benefits account:

- 24 (1) A conservation officer of the department of natural resources.
- 25 (2) An employee of the state excise police.
- 26 (3) An employee of the state police department, other than the
 27 following:
 - 28 (A) An employee of the state police department who waived
 29 coverage under a common and unified plan of self-insurance
 30 under IC 5-10-8-6 before July 1, 2011.
 - 31 (B) An employee of the state police department who makes an
 32 election under IC 5-10-8.5-9.5.
 - 33 (C) An employee of the state police department who makes an
 34 election under IC 5-10-8.5-9.6.
- 35 (4) **An individual who becomes employed in a position**
 36 **described in subsection (a) after December 31, 2026.**
- 37 (5) **An individual whose membership in the account is**
 38 **terminated under section 9.7(b) of this chapter.**

39 SECTION 6. IC 5-10-8.5-9.7 IS ADDED TO THE INDIANA
 40 CODE AS A NEW SECTION TO READ AS FOLLOWS
 41 [EFFECTIVE UPON PASSAGE]: Sec. 9.7. (a) **This section does not**
 42 **apply to a:**



1 (1) retired participant or the spouse and dependents of a
 2 retired participant; or

3 (2) participant who is eligible to receive an additional
 4 contribution under section 16 of this chapter.

5 (b) Subject to applicable federal tax law, except as provided in
 6 subsection (c), the following apply after December 31, 2026:

7 (1) Each participant's membership in the retirement medical
 8 benefits account is terminated.

9 (2) The amounts in each participant's subaccount are
 10 forfeited.

11 (3) The INPRS shall do the following for each participant:

12 (A) Terminate the participant's membership in the
 13 retirement medical benefits account.

14 (B) Transfer the amounts in the participant's subaccount
 15 to the state general fund to be used in the manner required
 16 under subdivision (4).

17 (4) The state comptroller shall transfer from the state general
 18 fund to each participant's defined contribution plan under
 19 IC 5-10-1.1-1.5(a) an amount equal to the balance in each
 20 participant's subaccount at the time the subaccount was
 21 forfeited under subdivision (2) in accordance with the
 22 amounts a member would have received under section 15 of
 23 this chapter based on each member's age and years of service.

24 (c) Subsection (b) does not apply to a participant who makes a
 25 one (1) time irrevocable election to become a participant in a
 26 successor retirement medical benefits account. An election under
 27 this subsection must be made to the INPRS:

28 (1) during the open enrollment period for state employees;
 29 and

30 (2) not later than December 1, 2026.

31 SECTION 7. IC 5-10-8.5-15, AS AMENDED BY P.L.92-2021,
 32 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 33 UPON PASSAGE]: Sec. 15. (a) Except as provided in subsections (c),
 34 (d), and (e), a participant's employer shall make contributions annually
 35 to the account on behalf of the participant sufficient to provide the
 36 benefit described in section 17 of this chapter. For a participant
 37 meeting the eligibility rules set forth in section 17 of this chapter, the
 38 amount credited to the participant's subaccount balance shall be the
 39 sum of annual contributions and earnings for each year of service. The
 40 amount of the contribution each fiscal year must equal or exceed the
 41 following, based on the participant's age on the last day of the calendar
 42 year that is in the fiscal year in which the contribution is made:



1	Participant's Age in Years	Annual Contribution
2		Amount
3	Less than 30	\$ 500
4	At least 30, but less than 40	\$ 800
5	At least 40, but less than 50	\$ 1,100
6	At least 50	\$ 1,400
7	(b) The INPRS shall determine by rule the date on which the	
8	contributions are credited to participants' subaccounts.	
9	(c) A contribution under this section shall not be made after June	
10	30, 2011, to any of the following participants:	
11	(1) A conservation officer of the department of natural resources.	
12	(2) An employee of the state excise police.	
13	(3) An employee of the state police department, other than the	
14	following:	
15	(A) An employee of the state police department who waived	
16	coverage under a common and unified plan of self-insurance	
17	under IC 5-10-8-6 before July 1, 2011.	
18	(B) An employee of the state police department who makes an	
19	election under IC 5-10-8.5-9.5.	
20	(C) An employee of the state police department who makes an	
21	election under IC 5-10-8.5-9.6.	
22	(d) For individuals who are employed on June 30, 2011, the accrued	
23	annual contributions made in accordance with subsection (a) to an	
24	account described in section 14 of this chapter on behalf of the	
25	individuals for any years the individuals were employed as described	
26	in section 1(b)(1) through 1(b)(3) of this chapter shall be transferred to	
27	the respective plans described in IC 5-10-8-6(a) for those individuals	
28	and shall be used only to reduce the unfunded other post-employment	
29	benefit (OPEB) liability of those plans and not to increase benefits or	
30	reduce premiums.	
31	(e) A contribution under this section shall not be made after June	
32	30, 2017, to a participant who on June 30, 2017:	
33	(1) is eligible for a normal, unreduced retirement benefit from the	
34	public employee retirement fund of which the participant is a	
35	member; and	
36	(2) has completed:	
37	(A) fifteen (15) years of service with the participant's employer;	
38	or	
39	(B) ten (10) years of service as an elected or appointed officer.	
40	(f) Each year, the INPRS shall:	
41	(1) report the assets and liabilities of the retiree health benefit	
42	trust fund or the 2027 retiree health benefit trust fund; and	



(2) based on the assets and liabilities of the retiree health benefit trust fund **or the 2027 retiree health benefit trust fund**, recommend an employer contribution amount to fund the participants' benefits described in section 17 of this chapter.

SECTION 8. IC 6-7-1-28.1, AS AMENDED BY P.L.213-2025, SECTION 86, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 28.1. The taxes, registration fees, fines, or penalties collected under this chapter shall be deposited in the following manner:

(1) One and seventy-six hundredths percent (1.76%) of the money shall be deposited in a fund to be known as the cigarette tax fund.

(2) The following amount of the money shall be deposited in the state general fund:

(A) After June 30, 2011, and before July 1, 2013, sixty and twenty-four hundredths percent (60.24%).

(B) After June 30, 2013, and before July 1, 2023, fifty-six and twenty-four hundredths percent (56.24%).

(C) After June 30, 2023, fifty-six and eighty-four hundredths percent (56.84%).

(D) After June 30, 2025, twenty-three and sixty-seven hundredths percent (23.67%).

(3) Two and twenty-six hundredths percent (2.26%) of the money shall be deposited into the pension relief fund established in IC 5-10.3-11.

(4) Eleven and twenty-six hundredths percent (11.26%) of the money shall be deposited in the healthy Indiana plan trust fund established by IC 12-15-44.2-17.

(5) Fifty-nine and thirty-eight hundredths percent (59.38%) of the money shall be deposited in the state general fund for the purpose of paying appropriations for Medicaid—Current Obligations.

(6) The following amount of the money shall be deposited ~~in the state retiree health benefit trust fund established by IC 5-10-8-8.5~~ as follows:

~~(A) Before July 1, 2011, five and seventy-four hundredths percent (5.74%);~~

~~(B) After June 30, 2011, and before July 1, 2013, zero percent (0%);~~

~~(C) After June 30, 2013, four percent (4%);~~

~~(D) After June 30, 2025, one and sixty-seven hundredths percent (1.67%);~~

(A) After June 30, 2025, and before July 1, 2026, one and sixty-seven hundredths percent (1.67%) shall be deposited



1 in the state retiree health benefit trust fund established by
 2 IC 5-10-8-8.5.

3 (B) After June 30, 2026, and before July 1, 2027, one and
 4 sixty-seven hundredths percent (1.67%) or the amount
 5 determined by the budget agency shall be deposited in the
 6 state retiree health benefit trust fund or the 2027 retiree
 7 health benefit trust fund established by IC 5-10-8-8.5. If the
 8 budget agency determines that less than one and sixty-seven
 9 hundredths percent (1.67%) should be deposited in the trust
 10 funds, the remainder shall be transferred to the state
 11 general fund.

12 (C) After June 30, 2027, one and sixty-seven hundredths
 13 percent (1.67%) of the money shall be deposited in the state
 14 general fund.

15 The money in the cigarette tax fund, the healthy Indiana plan trust fund,
 16 or the pension relief fund at the end of a fiscal year does not revert to
 17 the state general fund. However, if in any fiscal year, the amount
 18 allocated to a fund under subdivision (1) is less than the amount
 19 received in fiscal year 1977, then that fund shall be credited with the
 20 difference between the amount allocated and the amount received in
 21 fiscal year 1977, and the allocation for the fiscal year to the fund under
 22 subdivision (2) shall be reduced by the amount of that difference.
 23 Money deposited under subdivisions (5) through (6) may not be used
 24 for any purpose other than the purpose stated in the subdivision.

25 SECTION 9. **An emergency is declared for this act.**



COMMITTEE REPORT

Mr. President: The Senate Committee on Pensions and Labor, to which was referred Senate Bill No. 10, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 3, line 5, delete "(j)".

Page 3, line 5, strike "The state is obligated at any particular time only for the".

Page 3, strike lines 6 through 7.

Page 3, line 8, delete "(k)" and insert "(j)".

Page 3, line 31, after "Sec. 7.6." insert **"For participants who are subject to IC 5-10-8.5-9.7(b), the state comptroller shall transfer from the state general fund a one (1) time contribution of funds to each participant's defined contribution plan account under IC 5-10-1.1-1.5(a) based on the contributions the member would have received according to IC 5-10-8.5-15 based on each member's age and years of service."**

Page 3, line 33, delete "the transfer of amounts under IC 5-10-8.5-9.7(b)(4)." and insert **"this contribution."**

Page 3, delete lines 34 through 42.

Page 4, delete lines 1 through 27, begin a new paragraph and insert: "SECTION 4. IC 5-10-8-8.5, AS AMENDED BY P.L.201-2023, SECTION 78, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 8.5. (a) The ~~retiree health benefit trust fund~~ **is following** are established to provide funding for a retiree health benefit plan developed under IC 5-10-8.5, **including to provide continued funding for a retiree health benefit plan for individuals described in IC 5-10-8.5-9.7(a) and the individuals who elect to continue in the retiree health benefit trust fund pursuant to IC 5-10-8.5-9.7(c):**

(1) Before January 1, 2027, the retiree health benefit trust fund.

(2) After December 31, 2026, the 2027 retiree health benefit trust fund.

The trust fund described in subdivision (1) will be terminated upon the completion of the action required under IC 5-10-8.5-9.7.

(b) The trust ~~fund~~ **funds** shall be administered by the INPRS. The expenses of administering the trust ~~fund~~ **funds** shall be paid from money in the trust ~~fund~~ **funds**. **Subject to section 8.6 of this chapter,** the trust ~~fund~~ **consists funds consist** of cigarette tax revenues deposited in the ~~fund~~ **funds** under ~~IC 6-7-1-28.1(6)~~ **IC 6-7-1-28.1(6)(A)** and



other appropriations, revenues, or transfers to the trust ~~fund~~ **funds** under IC 4-12-1.

(c) The INPRS shall invest the money in the trust ~~fund~~ **funds** not currently needed to meet the obligations of the trust ~~fund~~ **funds** in the same manner and with the same limitations described in IC 5-10.5-4-1 and IC 5-10.5-5-1.

(d) The trust ~~fund~~ **is funds** ~~are~~ considered a trust fund for purposes of IC 4-9.1-1-7. Money may not be transferred, assigned, or otherwise removed from the trust ~~fund~~ **funds** by the state board of finance, the budget agency, or any other state agency, **except as provided under IC 5-10-8.5-9.7.**

(e) The trust ~~fund~~ **funds** shall be established and administered in a manner that complies with Internal Revenue Code requirements concerning health reimbursement arrangement (HRA) trusts. Contributions by the state to the trust ~~fund~~ **funds** are irrevocable. All assets held in the trust ~~fund~~ **funds** must be held for the exclusive benefit of participants of the retiree health benefit plan developed under IC 5-10-8.5 and their beneficiaries. **Subject to IC 5-10-8.5-9.7,** all assets in the trust ~~fund:~~ **funds:**

- (1) are dedicated exclusively to providing benefits to participants of the plan and their beneficiaries according to the terms of the plan; and
- (2) are exempt from levy, sale, garnishment, attachment, or other legal process.

(f) Money in the trust ~~fund~~ **funds** does not revert to the state general fund at the end of any state fiscal year.

(g) The money in the trust ~~fund~~ **funds** is appropriated to the INPRS for providing the retiree health benefit plan developed under IC 5-10-8.5.

(h) The budget agency may transfer appropriations from federal or dedicated funds to the ~~retiree health benefit trust fund:~~ **trust funds.**".

Page 4, line 32, after "fund" insert "**or the 2027 retiree health benefit trust fund**".

Page 5, line 8, delete "fund." and insert "**fund or the 2027 retiree health benefit trust fund.**".

Page 6, line 4, delete "who received" and insert "**who is eligible to receive**".

Page 6, line 22, delete "subdivision (2)." and insert "**subdivision (2) in accordance with the amounts a member would have received under section 15 of this chapter based on each member's age and years of service.**".

Page 6, delete lines 23 through 26, begin a new paragraph and



insert:

"(c) Subsection (b) does not apply to a participant who makes a one (1) time irrevocable election to become a participant in a successor retirement medical benefits account. An election under this subsection must be made to the INPRS:".

Page 6, between lines 29 and 30, begin a new paragraph and insert:

"SECTION 8. IC 5-10-8.5-15, AS AMENDED BY P.L.92-2021, SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 15. (a) Except as provided in subsections (c), (d), and (e), a participant's employer shall make contributions annually to the account on behalf of the participant sufficient to provide the benefit described in section 17 of this chapter. For a participant meeting the eligibility rules set forth in section 17 of this chapter, the amount credited to the participant's subaccount balance shall be the sum of annual contributions and earnings for each year of service. The amount of the contribution each fiscal year must equal or exceed the following, based on the participant's age on the last day of the calendar year that is in the fiscal year in which the contribution is made:

Participant's Age in Years	Annual Contribution Amount
Less than 30	\$ 500
At least 30, but less than 40	\$ 800
At least 40, but less than 50	\$ 1,100
At least 50	\$ 1,400

(b) The INPRS shall determine by rule the date on which the contributions are credited to participants' subaccounts.

(c) A contribution under this section shall not be made after June 30, 2011, to any of the following participants:

- (1) A conservation officer of the department of natural resources.
- (2) An employee of the state excise police.
- (3) An employee of the state police department, other than the following:

(A) An employee of the state police department who waived coverage under a common and unified plan of self-insurance under IC 5-10-8-6 before July 1, 2011.

(B) An employee of the state police department who makes an election under IC 5-10-8.5-9.5.

(C) An employee of the state police department who makes an election under IC 5-10-8.5-9.6.

(d) For individuals who are employed on June 30, 2011, the accrued annual contributions made in accordance with subsection (a) to an account described in section 14 of this chapter on behalf of the



individuals for any years the individuals were employed as described in section 1(b)(1) through 1(b)(3) of this chapter shall be transferred to the respective plans described in IC 5-10-8-6(a) for those individuals and shall be used only to reduce the unfunded other post-employment benefit (OPEB) liability of those plans and not to increase benefits or reduce premiums.

(e) A contribution under this section shall not be made after June 30, 2017, to a participant who on June 30, 2017:

(1) is eligible for a normal, unreduced retirement benefit from the public employee retirement fund of which the participant is a member; and

(2) has completed:

(A) fifteen (15) years of service with the participant's employer; or

(B) ten (10) years of service as an elected or appointed officer.

(f) Each year, the INPRS shall:

(1) report the assets and liabilities of the retiree health benefit trust fund **or the 2027 retiree health benefit trust fund**; and

(2) based on the assets and liabilities of the retiree health benefit trust fund **or the 2027 retiree health benefit trust fund**, recommend an employer contribution amount to fund the participants' benefits described in section 17 of this chapter."

Page 7, line 25, after "fund" insert "**or the 2027 retiree health benefit trust fund**".

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass and be reassigned to the Senate Committee on Appropriations.

(Reference is to SB 10 as introduced.)

ROGERS, Chairperson

Committee Vote: Yeas 10, Nays 0.

COMMITTEE REPORT

Mr. President: The Senate Committee on Appropriations, to which was referred Senate Bill No. 10, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

ES 10—LS 6184/DI 144



Replace the effective dates in SECTIONS 1 through 9 with "[EFFECTIVE JANUARY 1, 2028]".

Page 2, line 1, delete "2027." and insert "**2028.**".

Page 2, line 5, delete "2026." and insert "**2027.**".

Page 2, line 6, delete "2026," and insert "**2027,**".

Page 2, line 13, delete "Except as provided in section 1.7 of this chapter, state" and insert "**State**".

Page 2, delete lines 16 through 21, begin a new line block indented and insert:

"(2) State contributions are limited to the amount of biennial appropriations the budget agency determines are available for any such purposes."

Page 3, delete lines 12 through 28.

Page 4, line 7, delete "2027," and insert "**2028,**".

Page 4, line 9, delete "2026," and insert "**2027,**".

Page 4, line 9, after "the" delete "2027" and insert "**2028**".

Page 5, line 11, delete "2027" and insert "**2028**".

Page 5, line 14, delete "2026:" and insert "**2027:**".

Page 5, line 22, delete "2026." and insert "**2027.**".

Page 5, line 26, delete "state comptroller for the purpose of making" and insert "**state general fund.**".

Page 5, delete line 27.

Page 5, line 28, delete "under IC 5-10-1.1-1.5(a)".

Page 5, line 30, delete "2027" and insert "**2028**".

Page 6, line 18, delete "2026." and insert "**2027.**".

Page 6, line 30, delete "2026:" and insert "**2027:**".

Page 7, line 12, delete "2026." and insert "**2027.**".

Page 8, line 24, delete "2027" and insert "**2028**".

Page 8, line 26, delete "2027" and insert "**2028**".

Page 9, line 13, delete "2026," and insert "**2027,**".

Page 9, line 24, delete "2027" and insert "**2028**".

Page 9, line 31, delete "state comptroller for the purpose" and insert "**state general fund.**".

Page 9, delete lines 32 through 33.

Page 10, delete line 2.

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to SB 10 as printed December 11, 2025.)



GARTEN, Chairperson

Committee Vote: Yeas 13, Nays 0.

 SENATE MOTION

Mr. President: I move that Senate Bill 10 be amended to read as follows:

Replace the effective dates in SECTIONS 1 through 8 with "[EFFECTIVE UPON PASSAGE]".

Page 2, line 1, delete "2028." and insert "**2027.**".

Page 2, line 5, delete "2027." and insert "**2026.**".

Page 2, line 6, delete "2027," and insert "**2026,**".

Page 3, line 28, delete "2028," and insert "**2027,**".

Page 3, line 30, delete "2027," and insert "**2026,**".

Page 3, line 30, delete "2028" and insert "**2027**".

Page 3, line 38, reset in roman "IC 6-7-1-28.1(6)".

Page 3, line 38, delete "IC 6-7-1-28.1(6)(A)".

Page 4, line 7, delete "IC 5-10-8.5-9.7." and insert "**IC 5-10-8.5-9.7 and IC 6-7-1-28.1(6)(B).**".

Page 4, line 32, delete "2028" and insert "**2027**".

Page 4, line 33, delete "IC 6-7-1-28.1(6)(A)." and insert "**IC 6-7-1-28.1(6)(B) after December 31, 2026.**".

Page 4, line 35, delete "2027:" and insert "**2026:**".

Page 5, line 1, delete "2027." and insert "**2026.**".

Page 5, line 7, delete "2028" and insert "**2027**".

Page 5, line 37, delete "2027." and insert "**2026.**".

Page 6, line 7, delete "2027:" and insert "**2026:**".

Page 6, line 31, delete "2027." and insert "**2026.**".

Page 8, line 1, delete "2028" and insert "**2027**".

Page 8, line 3, delete "2028" and insert "**2027**".

Page 8, line 32, reset in roman "The following amount".

Page 8, line 32, delete "After December 31, 2027, one and".

Page 8, line 33, delete "sixty-seven hundredths percent (1.67%)".

Page 9, delete lines 1 through 8, begin a new line double block indented and insert:

"(A) After June 30, 2025, and before July 1, 2026, one and sixty-seven hundredths percent (1.67%) shall be deposited in the state retiree health benefit trust fund established by IC 5-10-8-8.5.

(B) After June 30, 2026, and before July 1, 2027, one and



sixty-seven hundredths percent (1.67%) or the amount determined by the budget agency shall be deposited in the state retiree health benefit trust fund or the 2027 retiree health benefit trust fund established by IC 5-10-8-8.5. If the budget agency determines that less than one and sixty-seven hundredths percent (1.67%) should be deposited in the trust funds, the remainder shall be transferred to the state general fund.

(C) After June 30, 2027, one and sixty-seven hundredths percent (1.67%) of the money shall be deposited in the state general fund."

Page 9, after line 18, begin a new paragraph and insert:
"SECTION 9. An emergency is declared for this act."

(Reference is to SB 10 as printed January 23, 2026.)

ROGERS

COMMITTEE REPORT

Mr. Speaker: Your Committee on Employment, Labor and Pensions, to which was referred Senate Bill 10, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill do pass.

(Reference is to SB 10 as reprinted January 28, 2026.)

VANNATTER

Committee Vote: Yeas 12, Nays 0

